



2026:DHC:4771-DB



* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

Reserved on: 15.04.2026
Pronounced on: 29.05.2026

+ **FAO(OS) No. 96/2025**

M/S PROGRESSIVE CONSTRUCTIONS PVT. LTD.

.....Appellant

**Through: Mr. Amit Rawal, Sr. Adv. &
Mr. Apoorv Kurup, Sr. Adv.
with Mr. Gurjas Narula, Ms.
Nidhi Mittal, Mr. Arjun D.
Singh, Mr. Yimyangar
Longkumer & Mr. Chipika
Zhimo, Advs.**

Versus

**M/S SHARMA & ASSOCIATES, CONTRACTOR PVT. LTD.
& ANR.**

.....Respondents

**Through: Mr. R.K. Joshi with Mr. Insaaf
Duggal, Mr. Ojusya Joshi &
Mr. Rahul Gujral, Advs.**

CORAM:

HON'BLE MR. JUSTICE VIVEK CHAUDHARY

HON'BLE MS. JUSTICE RENU BHATNAGAR

J U D G M E N T

CM. APPL. 53193/2025 (Delay in re-filing)

CM. APPL. 53197/2025 (Delay in filing)

1. The present applications, being CM. APPL. 53197/2025 (seeking condonation of delay of 26 days in filing the Appeal) and CM. APPL. 53193/2025 (seeking condonation of delay of 155 days in re-filing the Appeal), have been filed by the Appellant M/s Progressive Constructions Private Limited, in connection with the accompanying FAO(OS) No. 96 of 2025.



2. The accompanying Appeal in FAO(OS) No. 96 of 2025 arises out of the impugned final Order/Judgment dated 03.12.2024 passed by the learned Single Judge of this Court in CS(OS) No. 1751 of 2015 whereby the learned Single Judge dismissed the objections raised by the Appellant, allowed the plaint and made the Arbitral Award dated 20.03.2015 an order of the Court in terms of Section 14 of the Arbitration Act, 1940. The limitation period for filing an intra-court appeal from a learned Single Judge of this Court to the Division Bench is 30 days in terms of Article 117 of the Limitation Act, 1963. The Appellant applied for the certified copy of the impugned Judgment on 05.12.2024, which as per the Registry record was prepared on 10.12.2024. However, the Appellant collected the certified copy only on 01.02.2025 and thereafter filed the accompanying Appeal on 03.02.2025, thereby incurring a delay of 26 days in filing the Appeal (excluding 6 days under Section 12 of the Limitation Act, 1963 for preparation of certified copy). Accordingly, CM. APPL. 53197/2025 was filed for condonation of this delay of 26 days.

3. Upon filing the Appeal on 03.02.2025, the Registry of this Court raised objections *qua* the defects in filing on 04.02.2025, primarily questioning the maintainability of the Appeal as FAO(OS) against the impugned Judgment. Thereafter, the Appellant was required to undertake repeated re-filings to cure various defects raised by the Registry from time to time, including defects pertaining to nomenclature/maintainability, filing of typed/legible copies of



annexures, proper bookmarking, *vakalatnama*, and other procedural requirements. Ultimately, the Appeal was accepted by the Registry on 25.08.2025, subject to office objections. It was only on 28.07.2025 that the Registry for the first time marked a defect noting that the Appeal was time-barred and that an appropriate application was required. Consequently, CM. APPL. 53193/2025 was filed for condonation of the delay of 155 days in re-filing the Appeal.

4. This Court *vide* order dated 18.02.2026 directed the Appellant to file a detailed affidavit explaining the delay. In compliance thereof, the Appellant filed an Affidavit in furtherance of the Order dated 18.02.2026.

CONTENTIONS OF THE APPELLANT

5. Learned counsel for the Appellant submits that the delay of 26 days in filing the appeal arose out of genuine and unavoidable circumstances, and was neither deliberate nor attributable to negligence. It is pointed out that as recorded in the Affidavit in furtherance of the Order dated 18.02.2026, the litigation had been exclusively handled since 1989 by the Authorised Representative, Shri Surapaneni Rajendra Prasad. Unfortunately, he suffered a personal tragedy with the sudden demise of his only son-in-law on 22.06.2023, due to which he had to shift to his hometown in Andhra Pradesh and remained largely unavailable, with limited accessibility, until 02.02.2025. Given that the dispute related to a contract dating back to 1989 and required his specific inputs, the Appellant could not take a decision regarding filing of the appeal in his absence. It was only upon



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his resumption on 02.02.2025, and after the matter was placed before the Board, that approval was granted and the appeal was filed immediately on 03.02.2025.

6. It is further submitted that the delay was also occasioned by difficulties in obtaining the certified copy. Although the same was applied for on 05.12.2024 and prepared on 10.12.2024, it could not be collected in time as the concerned clerk, Mr. Raju Nayak, had to travel to his native place in West Bengal on 10.12.2024 due to family exigencies, inadvertently taking along the collection slip. This was followed by the intervening winter vacation of the Court, further delaying the process. Consequently, the certified copy could only be collected on 01.02.2025, leaving very limited time before the eventual filing of the appeal on 03.02.2025.

7. On the aspect of delay in re-filing, it is submitted that after the initial filing on 03.02.2025, defects were raised by the Registry on 04.02.2025, including objections regarding maintainability and nomenclature of the appeal. Acting on directions from the Registry, the Appellant changed the nomenclature from FAO (OS) to FAO and re-filed the matter on 17.02.2025. However, on the same date, the Registry again raised similar objections and directed reversion from FAO back to FAO(OS). These contradictory directions resulted in avoidable back-and-forth, causing delay despite the Appellant diligently curing defects. This is evident from the sequence of defect sheets spanning from 04.02.2025 to 25.08.2025. Additionally, the requirement of filing typed and legible copies of annexures posed



practical challenges, as the documents pertained to a contract of 1989 and formed part of voluminous arbitral records. Many documents were illegible and had to be freshly typed, a process that continued even during the summer vacation.

8. Lastly, it is submitted that the issue of limitation itself was not flagged at the outset. The Registry, under a *bona fide* belief, appears to have treated the limitation period as approximately 60 days and did not raise any objection in this regard for several months. It was only on 28.07.2025 that, for the first time, a defect was marked indicating that the appeal was time-barred. Upon being so informed, the Appellant immediately took steps and filed the necessary applications for condonation of delay along with supporting affidavits. It is thus contended that the delay occurred due to circumstances beyond the Appellant's control, and if not condoned, would result in serious and irreparable financial prejudice, despite the Appellant having a strong case on merits.

CONTENTIONS OF THE RESPONDENT NO. 1

9. *Per Contra*, learned counsel for Respondent No. 1 opposes the applications, submitting that they are wholly devoid of merit and fail to disclose any “*sufficient cause*” within the meaning of Section 5 of the Limitation Act, 1963. It is contended that there is an inordinate and unexplained delay of 199 days in filing and re-filing the Appeal, and that the explanations offered are vague, unsubstantiated, and appear to be afterthoughts to cover up negligence and lack of diligence on the part of the Appellant.



10. However, during the course of arguments, upon a specific query raised by this Court, learned counsel fairly submitted that he does not wish to contest the Affidavit in furtherance of the order dated 18.02.2026; consequently, the contents thereof have remained uncontroverted.

11. On the issue of delay in filing, learned counsel submits that the certified copy was applied for on 05.12.2024 and was prepared on 10.12.2024, whereas the winter vacation commenced only on 25.12.2024. Despite this, the certified copy was collected much later on 01.02.2025. It is urged that the Appellant has failed to explain, on a day-to-day basis, the period between 10.12.2024 and 01.02.2025, as required under settled law. The plea of bereavement of the authorised representative is stated to be unsupported by any documentary evidence, and even otherwise insufficient, particularly when the Appellant is a corporate entity capable of arranging alternate representation. The explanation regarding the clerk leaving for his native place is also termed an afterthought lacking any supporting material.

12. With regard to the delay in re-filing, learned counsel submits that upon initial filing on 03.02.2025, defects were raised and the objection regarding maintainability was specifically flagged on 17.02.2025. It is contended that all defects ought to have been cured within the prescribed period of 30 days under the Delhi High Court Original Side Rules, 2018, which the Appellant failed to do. The explanation that time was consumed in typing old and voluminous



records is described as exaggerated and untenable, particularly when such records had already been used before the Arbitral Tribunal and the learned Single Judge. The repeated defects and the Appellant's own endorsement "put up before the court as it on my risk" are relied upon to demonstrate a casual and non-diligent approach in pursuing the Appeal.

13. It is further submitted that the affidavits filed in support of the applications are fundamentally defective, inasmuch as a common affidavit dated 03.02.2025 bearing entry number 22(a)/2025 has been used for multiple applications, including those concerning events occurring up to 25.08.2025, rendering the same unreliable. Learned counsel also emphasizes that valuable rights have accrued in favour of the Respondent, whose Managing Director is over 76 years of age and has been engaged in this litigation for more than three decades. The Respondent has already suffered financial loss and succeeded in obtaining an award in its favour, and the dispute arising from a Sub-Contract Agreement of 1989 ought to attain finality. It is thus contended that allowing the present applications would cause grave prejudice and unjustly prolong the litigation, and accordingly, the same deserve to be dismissed with exemplary costs.

ANALYSIS AND FINDINGS

14. Heard learned counsel for both the parties at length and have perused the material on record including CM. APPL. 53197/2025, CM. APPL. 53193/2025, the Reply filed by Respondent No. 1, the



Rejoinder filed by the Appellant, and the Affidavit in Furtherance of the Order dated 18.02.2026.

15. The limited question before this Court at this stage is whether sufficient cause has been shown to justify condonation of the delay of 26 days in filing the Appeal and the subsequent delay in re-filing the same, and whether the applications ought to be allowed. It is made clear that this Court is not, at this stage, going into the merits of the accompanying Appeal in FAO(OS) No. 96 of 2025.

16. Section 5 of the Limitation Act, 1963 provides that any appeal or any application, other than an application under any of the provisions of Order XXI of the Code of Civil Procedure, 1908, may be admitted after the prescribed period if the appellant or the applicant satisfies the Court that he had sufficient cause for not preferring the appeal or making the application within such period. The provision is a beneficial and remedial one, intended to serve the ends of justice by preventing the harsh operation of the law of limitation. The discretion vested in the Court under Section 5, however, is a judicial discretion that must be exercised in a principled, consistent, and equitable manner.

17. The Supreme Court in **Collector, Land Acquisition, Anantnag v. Mst. Katiji &Ors.**, (1987) 2 SCC 107, has held that refusal to condone delay may result in a meritorious matter being dismissed at the threshold. It was observed that while every day's delay must be explained, the approach should not be overly technical or rigid, and the doctrine must be applied in a rational and practical manner. It is



also well settled that what is relevant is not the length of the delay, but the cause shown for such delay. If the explanation falls within the scope of “*sufficient cause*,” the delay ought to be condoned. The primary consideration of the Court is to ensure that substantial justice is done, and that procedural requirements do not result in injustice to a party acting *bona fide*. The relevant extract of the judgment is extracted below :

“3. The legislature has conferred the power to condone delay by enacting Section 5 [Any appeal or any application, other than an application under any of the provisions of Order XXI of the Code of Civil Procedure, 1908, may be admitted after the prescribed period if the appellant or the applicant satisfies the court that he had sufficient cause for not preferring the appeal or making the application within such period.] of the Indian Limitation Act of 1963 in order to enable the courts to do substantial justice to parties by disposing of matters on ”merits”. The expression “sufficient cause” employed by the legislature is adequately elastic to enable the courts to apply the law in a meaningful manner which subserves the ends of justice — that being the life-purpose for the existence of the institution of courts. It is common knowledge that this Court has been making a justifiably liberal approach in matters instituted in this Court. But the message does not appear to have percolated down to all the other courts in the hierarchy. And such a liberal approach is adopted on principle as it is realized that:

“1. Ordinarily a litigant does not stand to benefit by lodging an appeal late.

2. Refusing to condone delay can result in a meritorious matter being thrown



out at the very threshold and cause of justice being defeated. As against this when delay is condoned the highest that can happen is that a cause would be decided on merits after hearing the parties.

3. "Every day's delay must be explained" does not mean that a pedantic approach should be made. Why not every hour's delay, every second's delay? The doctrine must be applied in a rational common sense pragmatic manner.

4. When substantial justice and technical considerations are pitted against each other, cause of substantial justice deserves to be preferred for the other side cannot claim to have vested right in injustice being done because of a non-deliberate delay.

5. There is no presumption that delay is occasioned deliberately, or on account of culpable negligence, or on account of mala fides. A litigant does not stand to benefit by resorting to delay. In fact he runs a serious risk.

6. It must be grasped that judiciary is respected not on account of its power to legalize injustice on technical grounds but because it is capable of removing injustice and is expected to do so."

18. Before examining the delay in detail, this Court considers it necessary to note what is, in its view, the most important aspect of the present case. By order dated 18.02.2026, this Court had directed the Appellant to file a detailed affidavit explaining the delay. The Appellant complied with the said direction and filed an Affidavit in



furtherance of the Order dated 18.02.2026, setting out the explanation. During the course of arguments, and on a specific query put by this Court, learned counsel for Respondent No. 1 stated that he does not wish to contest the said Affidavit. This has a clear consequence as the facts stated in the Affidavit remain uncontroverted on record. Once the Respondent has chosen not to dispute the Affidavit, the basis of the objection that the explanation is vague, unsupported, or an afterthought does not survive. Accordingly, this Court proceeds on the footing that the facts stated in the Affidavit stand admitted.

19. The Appellant has explained the delay of 26 days in filing the Appeal on account of two circumstances which operated at the same time. First, the Authorised Representative, Shri Surapaneni Rajendra Prasad, who had been handling this matter since 1989 and was familiar with all aspects of the dispute, was not available. He suffered a personal loss due to the death of his only son-in-law on 22.06.2023 and had to go to his hometown in Andhra Pradesh. He remained largely unavailable till 02.02.2025. Considering the age of the dispute and the nature of the issues involved, the Appellant has stated that his inputs were necessary before taking a decision to file the Appeal.

20. Second, there was a delay in collecting the certified copy. The copy was applied for on 05.12.2024 and was ready on 10.12.2024. However, the clerk, Mr. Raju Nayak, who was to collect it, had to travel to West Bengal on 10.12.2024 due to family reasons and inadvertently took the collection slip with him. This, along with the



intervening Court winter vacation, resulted in the certified copy being collected only on 01.02.2025.

21. It is relevant that immediately after the Authorised Representative resumed on 02.02.2025, the matter was placed before the Board, approval was obtained, and the Appeal was filed on 03.02.2025 without any further delay. This conduct shows that the Appellant acted promptly once the situation was resolved.

22. The objection that the Appellant, being a corporate entity, could have made alternate arrangements cannot be accepted in the present facts, where the matter had been handled by a single individual since 1989 and required his familiarity with the case.

23. In the present case, the delay is of 26 days and is supported by reasons which stand uncontroverted. It is apparent from the record that explanation is *bona fide* and not a tactic to gain time. This Court finds that sufficient cause has been shown.

24. As regards the delay of 155 days in re-filing, this Court finds that a substantial part of the delay is attributable to the Registry and not to any lack of diligence on the part of the Appellant. The Appeal was initially filed on 03.02.2025 and defects were notified on 04.02.2025. Thereafter, the Registry directed the Appellant to change the nomenclature from FAO(OS) to FAO. Acting on this, the Appellant re-filed the matter on 17.02.2025. However, on the very same date, the Registry directed that the nomenclature be changed back to FAO(OS). These inconsistent directions caused confusion and resulted in avoidable delay.



25. Further, the Appellant was required to file typed and legible copies of annexures. It is stated that these documents relate to a contract of 1989 and form part of a voluminous arbitral record. Many of them were not legible in their original form and had to be freshly typed, which reasonably took time. The series of defect sheets issued between 04.02.2025 and 25.08.2025 shows that the Appellant was continuously taking steps to cure the defects and pursue the matter. This indicates the continued *bona fide* and genuine efforts on the part of appellant to pursue the appeal.

26. In judgment dated 06.04.2026 passed by a Coordinate Bench of this Court in RFA(OS)(COMM) 4/2026 titled ***Jain Irrigation Systems Ltd. v. Dura-Line India Pvt. Ltd.***, wherein the Division Bench has condoned the delay of 54 days in filing the appeal and 111 days in re-filing the appeal, the Court has held that delay in re-filing is primarily a matter between the Court and the litigant, and repeated re-filings to cure defects indicate that appellant was following up. It was also observed that delay in curing defects by counsel cannot, by itself, be taken as lack of intent on the part of the Appellant to pursue listing of appeal.

27. The Appellant had re-filed the matter on several occasions, and the delay in final acceptance is largely due to Registry taking objections again and again and the time required to prepare legible copies of old records. In these circumstances, the delay in re-filing stands sufficiently explained.



28. The objection raised by the respondent regarding the use of a common affidavit dated 03.02.2025 for multiple applications does not survive for consideration. This is because, pursuant to the order dated 18.02.2026, the Appellant has filed a detailed Affidavit in specifically addressing the issue of delay. The said affidavit has not been contested by the Respondent, and therefore the earlier objection loses significance.

29. As regards the argument that valuable rights have accrued in favour of the Respondent due to the lapse of limitation, the same has to be considered in light of the settled position of law. In **Basawaraj & Anr. v. The Spl. Land Acquisition Officer**, (2013) 14 SCC 81 the Supreme Court held:

“12.It is a settled legal proposition that law of limitation may harshly affect a particular party but it has to be applied with all its rigour when the statute so prescribes. The court has no power to extend the period of limitation on equitable grounds. “A result flowing from a statutory provision is never an evil. A court has no power to ignore that provision to relieve what it considers a distress resulting from its operation.” The statutory provision may cause hardship or inconvenience to a particular party but the court has no choice but to enforce it giving full effect to the same. The legal maxim dura lex sed lex which means “the law is hard but it is the law”, stands attracted in such a situation. It has consistently been held that, “inconvenience is not” a decisive factor to be considered while interpreting a statute.”

30. In the present case, the balance clearly leans in favour of the Appellant. The explanation for the delay remains uncontroverted, the



conduct of the Appellant shows *bona fides*, and there is nothing on record to suggest that the Respondent has altered its position to its prejudice relying on the finality of the impugned judgment.

31. In view of the above discussion, this Court is satisfied that the Appellant has shown sufficient cause within the meaning of Section 5 of the Limitation Act, 1963, both for the delay of 26 days in filing the Appeal and the delay of 155 days in re-filing.

32. Accordingly, both CM. APPL. 53197/2025 and CM. APPL. 53193/2025 are allowed. The delay of 26 days in filing and the delay of 155 days in re-filing FAO(OS) No. 96 of 2025 are hereby condoned. However, in order to partially compensate the Respondent for the prolonged uncertainty, this Court imposes costs of Rs. 50,000/- upon the Appellant, payable to Respondent No. 1, as a condition of the condonation.

33. The applications stand disposed of.

FAO(OS) No. 96/2025 & CM. APPL. 53194/2025, CM. APPL. 53196/2025

34. The present Appeal arises out of the impugned final Order/Judgment dated 03.12.2024 passed by the learned Single Judge of this Court in CS(OS) No. 1751 of 2015 whereby the learned Single Judge dismissed the objections raised by the Appellant, allowed the plaint and made the Arbitral Award dated 20.03.2015 an order of the Court in terms of Section 14 of the Arbitration Act, 1940.

35. Admit.

36. Let Trial Court Record be requisitioned in a digital format.



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37. List in the category of '*Regular matters*' to come up as per its own turn.

VIVEK CHAUDHARY, J.

RENU BHATNAGAR, J.

MAY 29, 2026/pr/my/kp